

1 **SENATE FLOOR VERSION**

2 February 11, 2025

3 SENATE BILL NO. 660

By: Bergstrom

4
5 An Act relating to state government; creating the
6 Oklahoma Foreign Agents Registration Act; providing
7 short title; providing legislative intent; defining
8 terms; prescribing requirements to register as a
9 foreign agent; providing certain requirements for
10 statement to be filed; providing exemptions;
11 prescribing requirements for filing and labeling
12 materials; prescribing method for the maintenance of
13 records; prescribing requirements upon the Attorney
14 General; prescribing liability of officers;
15 prescribing enforcement and penalties; prescribing
16 certain rules and regulations; providing for
17 noncodification; providing for codification; and
18 providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law not to be
21 codified in the Oklahoma Statutes reads as follows:

22 A. This act shall be known and may be cited as the "Oklahoma
23 Foreign Agents Registration Act".

24 B. The purpose of this act is to provide public transparency
for the political and propaganda activities conducted by agents
representing principals from foreign countries of concern.

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 13001 of Title 74, unless there
is created a duplication in numbering, reads as follows:

1 As used in this act:

2 1. "Agent of a foreign principal" shall mean:

3 a. any person who acts as an agent, representative,
4 employee, or servant, or any person who acts in any
5 other capacity at the order, request, or under the
6 direction or control of a foreign principal or of a
7 person any of whose activities are directly or
8 indirectly supervised, directed, controlled, financed,
9 or subsidized in whole or in part by a foreign
10 principal, and who directly or through any other
11 person:

12 (1) engages within this state in political activities
13 for or in the interests of such foreign
14 principal,

15 (2) acts within this state as a public relations
16 counsel, publicity agent, information service
17 employee, or political consultant for or in the
18 interests of such foreign principal,

19 (3) within this state solicits, collects, disburses,
20 or dispenses contributions, loans, money, or
21 other things of value for or in the interest of
22 such foreign principal, or

23 (4) within this state represents the interests of
24 such foreign principal before this state or any

1 political subdivision, agency, or official of
2 this state, and

3 b. any person who agrees, consents, assumes, or purports
4 to act as, or who is or holds himself or herself out
5 to be, whether or not pursuant to a contractual
6 relationship, an agent of a foreign principal as
7 defined in division (1) of subparagraph a of this
8 paragraph.

9 Agent of a foreign principal does not include any news or press
10 service or association organized under the laws of the United States
11 or of any state or other place subject to the jurisdiction of the
12 United States, or any newspaper, magazine, periodical, or other
13 publication for which there is on file with the United States Postal
14 Service information in compliance with federal law, solely by virtue
15 of any bona fide news or journalistic activities, including the
16 solicitation or acceptance of advertisements, subscriptions, or
17 other compensation therefor, as long as it is at least eighty
18 percent (80%) beneficially owned by, and its officers and directors
19 are, if any, citizens of the United States, and such news or press
20 service or association, newspaper, magazine, periodical, or other
21 publication is not owned, directed, supervised, controlled,
22 subsidized, or financed, and none of its policies are determined, by
23 any foreign principal as defined in paragraph 4 of this section, or
24

1 by any agent of a foreign principal required to register under this
2 act;

3 2. "Country of particular concern" shall mean any country
4 designated by the United States Secretary of State as hostile or a
5 Country of Particular Concern (CPC);

6 3. "Foreign political party" shall mean any organization or any
7 other combination of individuals in a country other than the United
8 States, or any unit or branch thereof, having for an aim or purpose,
9 or which is engaged in any activity devoted in whole or in part to,
10 the establishment, administration, control, or acquisition of
11 administration or control of a government of a foreign country or a
12 subdivision thereof, or the furtherance or influencing of the
13 political or public interests, policies, or relations of a
14 government of a foreign country or a subdivision thereof;

15 4. "Foreign principal" shall mean:

16 a. a government of a foreign country and a foreign
17 political party,

18 b. a person outside of the United States, unless it is
19 established that such person is an individual and a
20 citizen of and domiciled within the United States, or
21 that such person is not an individual and is organized
22 under or created by the laws of the United States or
23 of any state or other place subject to the
24

- jurisdiction of the United States and has its principal place of business within the United States,
- c. a partnership, association, corporation, organization, or other combination of persons organized under the laws of or having its principal place of business in a foreign country, or
- d. a partnership, association, corporation, organization, or other combination of persons that is at least twenty percent (20%) beneficially owned by a partnership, association, corporation, organization, or other combination of persons organized under the laws of or having its principal place of business in a foreign country;

5. "Government of a foreign country" shall mean any person or group of persons exercising sovereign de facto or de jure political jurisdiction over any country, other than the United States, or over any part of such country, and includes any subdivision of any such group and any group or agency to which such sovereign de facto or de jure authority or functions are directly or indirectly delegated. Such term shall include any faction or body of insurgents within a country assuming to exercise governmental authority regardless of whether such faction or body of insurgents has been recognized by the United States;

1 6. "Information service employee" shall mean any person who is
2 engaged in furnishing, disseminating, or publishing accounts,
3 descriptions, information, or data with respect to the political,
4 industrial, employment, economic, social, cultural, or other
5 benefits, advantages, facts, or conditions of any country other than
6 the United States or of any government of a foreign country or of a
7 foreign political party or of a partnership, association,
8 corporation, organization, or other combination of individuals
9 organized under the laws of, or having its principal place of
10 business in, a foreign country;

11 7. "Person" means an individual, partnership, association,
12 corporation, organization, or any other combination of individuals;

13 8. "Political activity" means any activity that the person
14 engaging in believes will, or that the person intends to, in any way
15 influence this state or any political subdivision, agency, or
16 official of this state, or any section of the public within this
17 state with reference to formulating, adopting, or changing the
18 domestic or foreign policies of the United States or of this state
19 with reference to the political or public interests, policies, or
20 relations of a government of a foreign country or a foreign
21 political party;

22 9. "Political consultant" means any person who engages in
23 informing or advising any other person with reference to the
24 policies of this state or the political or public interest,

1 policies, or relations of a foreign country or of a foreign
2 political party;

3 10. "Prints" means newspapers and periodicals, books,
4 pamphlets, sheet music, visiting cards, address cards, printing
5 proofs, engravings, photographs, pictures, drawings, plans, maps,
6 patterns to be cut out, catalogs, prospectuses, advertisements, and
7 printed, engraved, lithographed, or autographed notices of various
8 kinds, and, in general, all impressions or reproductions obtained on
9 paper or other material assimilable to paper, on parchment or on
10 cardboard, by means of printing, engraving, lithography, autography,
11 or any other easily recognizable mechanical process, with the
12 exception of the copying press, stamps with movable or immovable
13 type, and the typewriter;

14 11. "Public relations counsel" shall mean any person who
15 engages directly or indirectly in informing, advising, or in any way
16 representing a principal in any public relations matter pertaining
17 to political or public interests, policies, or relations of such
18 principal;

19 12. "Publicity agent" shall mean any person who engages
20 directly or indirectly in the publication or dissemination of oral,
21 visual, graphic, written, or pictorial information or matter of any
22 kind, including publication by means of advertising, books,
23 periodicals, newspapers, lectures, broadcasts, motion pictures, or
24 otherwise;

1 13. "Registration statement" shall mean the registration
2 statement and any supplements required to be filed with the Attorney
3 General under Section 3 or 4 of this act and shall include all
4 documents and papers required to be filed with the statement or
5 supplements, or amendatory of the statement or supplements, whether
6 attached or incorporated by reference; and

7 14. "United States", when used in a geographical sense, means
8 the fifty States, the District of Columbia, and the territories, the
9 insular possessions, and all other places now or hereafter subject
10 to the civil or military jurisdiction of the United States.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 13002 of Title 74, unless there
13 is created a duplication in numbering, reads as follows:

14 A. No person shall act as an agent of a foreign principal from
15 a country of particular concern unless he or she has filed with the
16 Attorney General a true and complete registration statement and
17 supplements as required by this subsection and subsection B of this
18 section, or unless he or she is exempt from registration under the
19 provisions of this act. Except as provided in this act, every
20 person who becomes an agent of a foreign principal from a country of
21 particular concern shall, within ten (10) days thereafter, file with
22 the Attorney General, in duplicate, a registration statement, under
23 oath on a form prescribed by the Attorney General. The obligation
24 of an agent of a foreign principal from a country of particular

1 concern to file a registration statement shall, after the tenth day
2 of his or her becoming such agent, continue from day to day, and
3 termination of such status shall not relieve such agent from his or
4 her obligation to file a registration statement for the period
5 during which he or she was an agent of a foreign principal from a
6 country of particular concern. The registration statement shall
7 include the following, which shall be regarded as material for the
8 purposes of this subsection:

9 1. The registrant's name, principal business address, and all
10 other business addresses in the United States or elsewhere, and all
11 residence addresses, if any;

12 2. The status of the registrant; if an individual, nationality;
13 if a partnership, name, residence addresses, and nationality of each
14 partner and a true and complete copy of its articles of partnership;
15 if an association, corporation, organization, or any other
16 combination of individuals, the name, residence addresses, and
17 nationality of each director and officer and of each person
18 performing the functions of a director or officer and a true and
19 complete copy of its charter, articles of incorporation,
20 association, constitution, and bylaws, and amendments thereto; a
21 copy of every other instrument or document and a statement of the
22 terms and conditions of every oral agreement relating to its
23 organization, powers, and purposes; and a statement of its ownership
24 and control;

1 3. A comprehensive statement of the nature of the registrant's
2 business; a complete list of the registrant's employees and a
3 statement of the nature of the work of each; the name and address of
4 every foreign principal from a country of particular concern for
5 whom the registrant is acting, assuming or purporting to act, or has
6 agreed to act; the character of the business or other activities of
7 every such foreign principal from a country of particular concern,
8 and, if any such foreign principal from a country of particular
9 concern be other than a natural person, a statement of the ownership
10 and control of each; and the extent, if any, to which each such
11 foreign principal from a country of particular concern is
12 supervised, directed, owned, controlled, financed, or subsidized, in
13 whole or in part, by any government of a foreign country or foreign
14 political party, or by any other foreign principal from a country of
15 particular concern;

16 4. Copies of each written agreement and the terms and
17 conditions of each oral agreement, including all modifications of
18 such agreements, or, where no contract exists, a full statement of
19 all the circumstances, by reason of which the registrant is an agent
20 of a foreign principal from a country of particular concern; a
21 comprehensive statement of the nature and method of performance of
22 each such contract, and of the existing and proposed activity or
23 activities engaged in or to be engaged in by the registrant as an
24 agent of a foreign principal from a country of particular concern

1 for each such foreign principal from a country of particular
2 concern, including a detailed statement of any such activity which
3 is a political activity;

4 5. The nature and number of contributions, income, money, or
5 thing of value, if any, that the registrant has received within the
6 preceding one hundred eighty (180) days from each such foreign
7 principal from a country of particular concern, either as
8 compensation or for disbursement or otherwise, and the form and time
9 of each such payment and from whom such payment was received;

10 6. A detailed statement of every activity which the registrant
11 is performing or is assuming or purporting or has agreed to perform
12 for himself or herself or any other person other than a foreign
13 principal from a country of particular concern and which requires
14 his or her registration under this act, including a detailed
15 statement of any such activity which is a political activity;

16 7. The name, business, and residence addresses, and if an
17 individual, the nationality, of any person other than a foreign
18 principal from a country of particular concern for whom the
19 registrant is acting, assuming or purporting to act, or has agreed
20 to act under such circumstances as required by his or her
21 registration under this act; the extent to which each such person is
22 supervised, directed, owned, controlled, financed, or subsidized, in
23 whole or in part, by any government of a foreign country or foreign
24 political party or by any other foreign principal from a country of

1 particular concern; and the nature and amount of contributions,
2 income, money, or thing of value, if any, that the registrant has
3 received during the preceding one hundred eighty (180) days from
4 each such person in connection with any of the activities referred
5 to in paragraph 6 of this subsection, either as compensation or for
6 disbursement or otherwise, and the form and time of each such
7 payment and from whom received;

8 8. A detailed statement of the money and other things of value
9 spent or disposed of by the registrant during the preceding one
10 hundred eighty (180) days in furtherance of or in connection with
11 activities which require his or her registration under this act and
12 which have been undertaken by him or her either as an agent of a
13 foreign principal from a country of particular concern or for
14 himself or herself or any other person or in connection with any
15 activities relating to his or her becoming an agent of such
16 principal from a country of particular concern, and a detailed
17 statement of any contributions of money or other things of value
18 made by him or her during the preceding one hundred eighty (180)
19 days other than contributions prohibited under federal law in
20 connection with an election to any political office or in connection
21 with any primary election, convention, or caucus held to select
22 candidates for any political office;

23 9. Copies of each written agreement and the terms and
24 conditions of each oral agreement, including all modifications of

1 such agreements, or, where no contract exists, a full statement of
2 all the circumstances, by reason of which the registrant is
3 performing or assuming or purporting or has agreed to perform for
4 himself or herself or for a foreign principal from a country of
5 particular concern or for any person other than a foreign principal
6 from a country of particular concern any activities which require
7 his or her registration under this act;

8 10. Such other statements, information, or documents pertinent
9 to the purposes of this subsection as the Attorney General, having
10 due regard for the national security and the public interest, may
11 require; and

12 11. Any further statements and copies of documents necessary to
13 make the statements made in the registration statement and
14 supplements, and the copies of accompanying documents, not
15 misleading.

16 B. Every agent of a foreign principal from a country of
17 particular concern who has filed a registration statement required
18 by subsection A of this section shall, within thirty (30) days after
19 the expiration of each period of six (6) months succeeding such
20 filing, file with the Attorney General a supplement to the statement
21 under oath, on a form prescribed by the Attorney General, which
22 shall set forth with respect to the preceding six (6) months' period
23 such facts as the Attorney General, having due regard for the
24 national security and the public interest, may deem necessary to

1 make the information required under this section accurate, complete,
2 and current with respect to such period. In connection with the
3 information furnished under paragraphs 3, 4, 6, and 9 of subsection
4 A of this section, the registrant shall give notice to the Attorney
5 General of any changes within ten (10) days after such changes
6 occur. If the Attorney General, having due regard for the national
7 security and the public interest, determines that it is necessary to
8 carry out the purposes of this act, he or she may, in any particular
9 case, require supplements to the registration statement to be filed
10 at more frequent intervals in respect to all or particular items of
11 information to be furnished.

12 C. The registration statement and supplements shall be executed
13 under oath as follows: If the registrant is an individual, by him
14 or her; if the registrant is a partnership, by the majority of the
15 members thereof; if the registrant is a person other than an
16 individual or a partnership, by a majority of the officers thereof
17 or persons performing the functions of officers or by a majority of
18 the board of directors thereof or persons performing the functions
19 of directors, if any.

20 D. The fact that a registration statement or supplement has
21 been filed shall not be deemed a full compliance with this act and
22 any regulations under this act on the part of the registrant, nor
23 shall it indicate that the Attorney General has in any way passed
24 upon the merits of such registration statement or supplement. Such

1 filing shall not preclude prosecution for willful failure to file a
2 registration statement or supplement when due, for a willful false
3 statement of a material fact or the willful omission of a material
4 fact required to be stated, or the willful omission of a material
5 fact or copy of a material document necessary to make the statements
6 made in a registration statement and supplements, and the copies of
7 accompanying documents, not misleading.

8 E. If an agent of a foreign principal from a country of
9 particular concern required to register under the provisions of this
10 act has previously registered, the Attorney General, in order to
11 eliminate inappropriate duplication, may permit incorporation by
12 reference in the registration statement or supplements filed under
13 this act of any information or documents previously filed by such
14 agent of a foreign principal from a country of particular concern
15 under the provisions of this section.

16 SECTION 4. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 13003 of Title 74, unless there
18 is created a duplication in numbering, reads as follows:

19 Any person who acted as an agent of a foreign principal from a
20 country of particular concern at any time after January 1, 2014, and
21 until the effective date of this act shall file with the Attorney
22 General a true and complete retroactive registration statement and
23 supplements as required under Section 3 of this act.

1 SECTION 5. NEW LAW A new section of law to be codified

2 in the Oklahoma Statutes as Section 13004 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 The requirements of Sections 3 and 4 of this act shall not apply
5 to the following agents of foreign principals:

6 1. A duly accredited diplomatic or consular officer of a
7 foreign government who is so recognized by the United States
8 Department of State, while the officer is engaged exclusively in
9 activities that are recognized by the United States Department of
10 State as being within the scope of the functions of the officer;

11 2. Any official of a foreign government, if such government is
12 recognized by the United States, who is not a public relations
13 counsel, publicity agent, information service employee, or a citizen
14 of the United States, whose name and status and the character of
15 whose duties as such official are of public record with the United
16 States Department of State, while the official is engaged
17 exclusively in activities that are recognized by the Department of
18 State as being within the scope of the functions of such official;

19 3. Any member of the staff of, or any person employed by, a
20 duly accredited diplomatic or consular officer of a foreign
21 government who is so recognized by the United States Department of
22 State, other than a public relations counsel, publicity agent, or
23 information service employee, whose name and status and the
24 character of whose duties as such member or employee are of public

1 record in the United States Department of State, while the member or
2 employee is engaged exclusively in the performance of activities
3 that are recognized by the United States Department of State as
4 being within the scope of the functions of such member or employee;
5 or

6 4. Any person qualified to practice law in this state, if he or
7 she engages or agrees to engage in the legal representation of a
8 disclosed foreign principal from a country of particular concern
9 before any state court or any agency of this state or an entity of a
10 political subdivision of this state; provided, for purposes of this
11 act, legal representation does not include attempts to influence or
12 persuade agency personnel or officials other than in the course of
13 judicial proceedings, criminal or civil law enforcement inquiries,
14 investigations, or proceedings, or agency proceedings required by
15 statute or regulation to be conducted on the record.

16 SECTION 6. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 13005 of Title 74, unless there
18 is created a duplication in numbering, reads as follows:

19 A. Any person within this state who is an agent of a foreign
20 principal from a country of particular concern and who is required
21 to register under the provisions of this act, who transmits or
22 causes to be transmitted in the United States mail or by any means
23 or instrumentality of interstate or foreign commerce any
24 informational materials for or in the interests of the foreign

1 principal from a country of particular concern (i) in the form of
2 prints, or (ii) in any other form which is reasonably adapted to
3 being, or which he or she believes will be or intends to be,
4 disseminated or circulated among two or more persons shall, no later
5 than forty-eight (48) hours after the beginning of the transmittal,
6 file two copies of the materials with the Attorney General.

7 B. It shall be unlawful for any person within the United States
8 who is an agent of a foreign principal from a country of particular
9 concern and required to register under the provisions of this act to
10 transmit or cause to be transmitted in the United States mail or by
11 any means or instrumentality of interstate or foreign commerce any
12 informational materials for or in the interests of such foreign
13 principal without placing in the informational materials a
14 conspicuous statement that the materials are distributed by the
15 agent on behalf of the foreign principal and that additional
16 information is on file with the Attorney General. The Attorney
17 General shall determine what constitutes a conspicuous statement for
18 the purposes of this section.

19 C. The copies of informational materials required by this
20 section to be filed with the Attorney General shall be available for
21 public inspection under such regulations as the Attorney General may
22 prescribe.

23 D. Under the provisions of this act, it shall be unlawful for
24 any person who is an agent of a foreign principal from a country of

1 particular concern within this state to transmit, convey, or
2 otherwise furnish to any government agency or official of this
3 state, including any member or committee of the Legislature or
4 governing body of a political subdivision, any political propaganda,
5 or to request from any such agency or official any information or
6 advice with respect to any matter pertaining to the political or
7 public interests, policies, relations, or political party that is in
8 the interests of the foreign principal from a country of particular
9 concern or pertaining to the foreign or domestic policies of the
10 United States or this state, unless the propaganda or the request is
11 prefaced or accompanied by a true and accurate statement to the
12 effect that such person is registered as an agent of a foreign
13 principal from a country of particular concern.

14 E. Whenever any agent of a foreign principal from a country of
15 particular concern required to register under this act appears
16 before a committee of the Legislature or a governing body of a
17 political subdivision to testify for or in the interests of the
18 foreign principal, he or she shall, at the time of such appearance,
19 furnish the committee with a copy of his or her most recent
20 registration statement filed with the Attorney General as an agent
21 of the foreign principal from a country of particular concern for
22 inclusion in the records of the committee as part of the testimony.

1 SECTION 7. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 13006 of Title 74, unless there
3 is created a duplication in numbering, reads as follows:

4 Any agent of a foreign principal from a country of particular
5 concern registered under this act shall keep and preserve while an
6 agent of a foreign principal the books of account and other records
7 with respect to all of his or her activities, the disclosure of
8 which is required under the provisions of this act, in accordance
9 with such business and accounting practices, and shall preserve the
10 same for a period of three (3) years following the termination of
11 such status. Until regulations are in effect under this section,
12 any agent of a foreign principal from a country of particular
13 concern shall keep books of account and shall preserve all written
14 records with respect to his or her activities. Such books and
15 records shall be open at all reasonable times to the inspection of
16 any official charged with the enforcement of this act. It shall be
17 unlawful for any person to willfully conceal, destroy, obliterate,
18 mutilate, or falsify, or to attempt to conceal, destroy, obliterate,
19 mutilate, or falsify, or to cause to be concealed, destroyed,
20 obliterated, mutilated, or falsified, any books or records required
21 to be kept under the provisions of this act.

22 SECTION 8. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 13007 of Title 74, unless there
24 is created a duplication in numbering, reads as follows:

1 A. The Attorney General shall retain one copy of all
2 registration statements furnished under this act, and such
3 statements shall be public records and open to public examination
4 and inspection at such reasonable hours as the Attorney General may
5 prescribe. Copies of such statements shall be furnished to every
6 applicant at a reasonable fee prescribed by the Attorney General.

7 B. Upon receipt, the Attorney General shall promptly transmit
8 one copy of any registration statement, amendment, or supplement
9 filed under this act to the United States Secretary of State for
10 comment and use as the Secretary of State determines to be
11 appropriate for the foreign relations of the United States. Failure
12 of the Attorney General to transmit such copy shall not be a bar to
13 prosecution under this act.

14 C. The Attorney General may furnish to departments and agencies
15 in the executive branch and committees of the Legislature any
16 information obtained in the administration of this act, including
17 the names of registrants, copies of registration statements or parts
18 of such statements, or other documents or information filed under
19 this act as may be appropriate.

20 D. Every six (6) months, the Attorney General shall report to
21 the Legislature information concerning administration of this act
22 including registrations filed, and the nature, sources, and content
23 of political propaganda disseminated and distributed. Such
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1 information shall be made available monthly on the website of the
2 Attorney General.

3 SECTION 9. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 13008 of Title 74, unless there
5 is created a duplication in numbering, reads as follows:

6 Each officer or director, or person performing the functions of
7 an officer or director, of an agent of a foreign principal from a
8 country of particular concern which is not an individual shall cause
9 such agent to execute and file a registration statement and
10 supplements when such filing is required under subsections A and B
11 of Section 3 or under Section 4 of this act and shall cause the
12 agent to comply with all other requirements of this act.
13 Dissolution of an organization acting as an agent of a foreign
14 principal from a country of particular concern shall not relieve any
15 officer or director, or person performing the functions of an
16 officer or director, from complying with the provisions of this
17 section. In case of failure of any agent of a foreign principal
18 from a country of particular concern to comply with the requirements
19 of this act, each of its officers or directors, or persons
20 performing the functions of officers or directors, shall be subject
21 to prosecution for such failure to comply.

22 SECTION 10. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 13009 of Title 74, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Any person who willfully:

2 1. Violates any provision of this act or any regulation
3 promulgated pursuant to this act; or

4 2. In any registration statement, supplement, or other document
5 filed with or furnished to the Attorney General under this act:

6 a. makes a false statement of a material fact,

7 b. omits any material fact required to be stated therein,
8 or

9 c. omits a material fact or a copy of a material document
10 necessary to make such statements or the copy of
11 documents furnished not misleading,

12 shall, upon conviction, be guilty of a felony punishable by a fine
13 not to exceed One Hundred Thousand Dollars (\$100,000.00) or by

14 imprisonment in the custody of the Department of Corrections for a
15 term not to exceed five (5) years, or by both such fine and

16 imprisonment. In the case of a violation of Section 6 of this act

17 or of subsection G of this section, the punishment shall be a fine

18 not to exceed Fifty Thousand Dollars (\$50,000.00) or a term of

19 imprisonment in the county jail not to exceed one (1) year, or both
20 such fine and imprisonment.

21 B. Any person who is a student, faculty member, researcher,
22 adjunct, or otherwise employed or associated with an institution
23 within The Oklahoma State System of Higher Education who willfully:

1 1. Violates any provision of this act or any regulation
2 promulgated under such provision; or

3 2. In any registration statement or supplement or in any other
4 document filed with or furnished to the Attorney General under the
5 provisions of this subsection:

6 a. makes a false statement of a material fact,

7 b. omits any material fact required to be stated therein,
8 or

9 c. omits a material fact or a copy of a material document
10 necessary to make such statements or the copy of
11 documents furnished not misleading,

12 shall, upon conviction, be expelled or dismissed from any role with
13 an institution of higher education in this state and shall be
14 prohibited from entering any campus in this state.

15 C. In any proceeding under this act in which it is charged that
16 a person is an agent of a foreign principal from a country of
17 particular concern with respect to a foreign principal outside of
18 the United States, proof of the specific identity of the foreign
19 principal from a country of particular concern shall be permissible
20 but not necessary.

21 D. Any alien who shall be convicted of a violation of, or a
22 conspiracy to violate, any provision of this act or any regulation
23 thereunder shall be subject to referral to the United States
24 Department of Justice for removal pursuant to Chapter 4 of Title II

1 of the Immigration and Nationality Act, 8 U.S.C.A., Section 1221 et
2 seq.

3 E. Failure to file any such registration statement or
4 supplements as is required by either subsection A or B of Section 3
5 of this act shall be considered a continuing offense for as long as
6 such failure exists, notwithstanding any statute of limitation or
7 other statute to the contrary.

8 F. Whenever in the judgment of the Attorney General, any person
9 who is engaged in or about to engage in any acts which constitute or
10 will constitute a violation of, or fails to comply with, any
11 provision of this act, the Attorney General may make application to
12 the appropriate state court for an order enjoining such acts or
13 enjoining such person from continuing to act as an agent of such
14 foreign principal from a country of particular concern, or for an
15 order requiring compliance with any appropriate provision of the
16 act. The state court shall have jurisdiction and authority to issue
17 a temporary or permanent injunction, restraining order, or such
18 other order, which it may deem proper.

19 G. If the Attorney General determines that a registration
20 statement does not comply with the requirements of this act, he or
21 she shall so notify the registrant in writing, specifying in what
22 respects the statement is deficient. It shall be unlawful for any
23 person to act as an agent of a foreign principal from a country of
24 particular concern at any time ten (10) days or more after receipt

1 of such notification without filing an amended registration
2 statement in full compliance with the requirements of this act.

3 H. It shall be unlawful for any agent of a foreign principal
4 from a country of particular concern required to register under this
5 act to be a party to any contract, agreement, or understanding,
6 either express or implied, with such foreign principal from a
7 country of particular concern pursuant to which the amount or
8 payment of the compensation, fee, or other remuneration of such
9 agent is contingent in whole or in part upon the success of any
10 political activities carried on by such agent.

11 SECTION 11. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 13010 of Title 74, unless there
13 is created a duplication in numbering, reads as follows:

14 The Attorney General shall promulgate rules necessary to
15 effectuate the provisions of this act, and may at any time make,
16 prescribe, amend, and rescind any forms as he or she may deem
17 necessary to effectuate the provisions of this act.

18 SECTION 12. This act shall become effective November 1, 2025.

19 COMMITTEE REPORT BY: COMMITTEE ON RETIREMENT AND GOVERNMENT
20 RESOURCES
21 February 11, 2025 - DO PASS
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23
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